

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ROBERT McCULLOUGH,

Plaintiff,

- against -

THE CITY OF NEW YORK, the NEW YORK CITY
POLICE DEPARTMENT, P.O. HASTINGS, and
P.O. JOHN DOE nos. 1-10,Defendants.
-----X

Index No.:

Date Purchased:

SummonsPlaintiff designates New York
County as place of trial.

The basis of venue is:

Defendant's residence and
location of the incident.

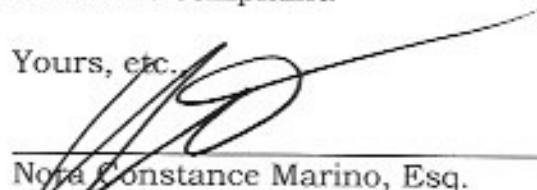
Defendant resides at:

New York County. The location
of the incident is New York
County.**To the above named Defendant(s):**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, of if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Nassau County, New York
January 10, 2018

Yours, etc.



Nora Constance Marino, Esq.
Attorney for PlaintiffROBERT McCULLOUGH
175 East Shore Road, Suite 230
Great Neck, New York 11023
516-829-8399
File No.: 1583

Service to:

See next page:

CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
One Centre Street
Room 1200
New York, NY 10007-2341

CITY OF NEW YORK
LAW DEPARTMENT
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

P.O. HASTINGS, Shield No. 5770
One Police Plaza
New York, New York 10038

P.O. JOHN DOES (1-10)
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ROBERT McCULLOUGH,

Plaintiff,

VERIFIED COMPLAINT

- against -

Index No.:

THE CITY OF NEW YORK, the NEW YORK CITY
POLICE DEPARTMENT, P.O. HASTINGS, P.O.
JOHN DOE nos. 1-10,

Defendants.

-----X

Plaintiff, by his attorney, NORA CONSTANCE MARINO, ESQ.
complaining of the Defendants herein, respectfully show this Court, and allege
as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, plaintiff ROBERT McCULLOUGH ("McCULLOUGH") was and still is a resident of the County of Kings, State of New York.

2. That at all times hereinafter mentioned, defendant CITY OF NEW YORK ("CITY") was and still is a municipal corporation, duly organized and existing under and by virtue of the law of the State of New York.

3. That at all times hereinafter mentioned, defendant NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and still is a municipal corporation and/or municipal police department, duly organized and existing under and by virtue of the law of the State of New York.

4. That at all times hereinafter mentioned defendant P.O. HASTINGS ("HASTINGS") was an agent, servant, and/or employee of defendants City and NYPD; was a member of the NYPD; and was acting for, upon, and in course of and in furtherance of the business of his employers and within the scope of his employment for defendants City and NYPD.

5. That at all times hereinafter mentioned, defendants P.O. John Does 1-10, names being fictitious as names are unknown at this time, were agents, servants, and/or employees of defendants City and NYPD; were members of the NYPD; and were acting for, upon, and in course of and in furtherance of the business of their employers and within the scope of their employment for defendants City and NYPD.

6. That all times hereinafter mentioned defendants City and NYPD employed police officers and jailors and others hereafter mentioned in this complaint.

7. That at all times hereinafter mentioned, defendants City and NYPD owned, maintained, supervised, managed, operated, inspected and controlled the various jails, police, facilities, police stations, police precincts, police equipment, police vehicles, all hereinafter mentioned in the complaint.

8. That at all times hereinafter mentioned, all of the actions of the officers allege herein were done within the scope and course of their employment with defendants City and NYPD and under color of the state law.

9. That prior to the commencement of this action, and within ninety (90) days after the happening of the incident herein, plaintiff herein served a Notice of Claim in

writing upon the defendants THE CITY OF NEW YORK.

10. That a 50-H hearing was held.

11. That this action is commenced within one (1) year and ninety (90) days of the date when the incident occurred to the plaintiff.

FACTS

12. That on or about the 4th day of February, 2017, at approximately 2:30 P.M., plaintiff McCULLOUGH was lawfully in and about the general vicinity of 101 Wooster Street, between Spring Street and Prince Street, County of New York, State of New York.

13. That on or about the 4th day of February, 2017, at approximately 2:30 P.M., plaintiff McCULLOUGH was lawfully in and about the above mentioned general vicinity when defendants wrongfully detained, arrested, frisked, searched, assaulted, touched, battered, and verbally abused plaintiff without justification, authorization, provocation or cause.

14. That on or about February 4, 2017, defendants unlawfully and wrongfully arrested Plaintiff McCULLOUGH.

15. That the plaintiff did not violate any law, rule, or regulation, or act in any way that would justify said actions.

16. That on or about January 15, 2017, at approximately 3:00 P.M., January 22, 2017, at approximately 3:00 P.M.; and among various other dates and times between December 15, 2017 and February 18, 2017, plaintiff McCULLOUGH was lawfully in and about the above-mentioned general vicinity

when the defendants unlawfully videotaped and threatened plaintiff without justification, authorization, provocation or cause, and in violation of the Handschu Agreement, a/k/a Handschu Decree a/k/a Handschu Act.

17. That the wrongful, unjust, and unlawful apprehension, arrest, detention, and videotaping were carried out without probable cause, without reasonable suspicion, and without cause of any sort.

18. That the wrongful, unjust, and unlawful apprehension, detention and videotaping were carried out without any justification whatsoever.

19. That at all relevant times, defendants acted forcibly in detaining Plaintiff.

20. That thereafter, after the unlawful detention, plaintiff McCULLOUGH was removed from the scene of the wrongful detention and was unlawfully arrested by defendants, and was taken to a police precinct or some other type of holding area.

21. That said arrest constituted a false arrest, false imprisonment, and wrongful arrest, and deprived plaintiff of his personal freedom and civil rights, as plaintiff never committed any crime or violation to warrant such action.

22. That defendants, their officers, agents, servants and/or employees were responsible for plaintiff's arrest, assault and detention during this period of time.

23. That the defendants acted with a knowing, willful, wanton, maliciousness, gross, reckless, unlawful, unreasonable and flagrant disregard of plaintiff's rights, privileges, welfare and well-being and were guilty of egregious

and gross misconduct towards him.

24. That the District Attorney declined to prosecute the plaintiff for any of the charges alleged by the defendants.

25. That by reason of the foregoing, Plaintiff has suffered damages.

FIRST CAUSE OF ACTION

WRONGFUL ARREST: DEPRIVATION OF PLAINTIFFS' RIGHTS UNDER THE FIRST, FOURTH, FIFTH, AND FOURTEENTH AMENDMENTS OF THE UNITED STATES CONSTITUTION, AND NEW YORK STATE LAW AND THE NEW YORK STATE CONSTITUTION

26. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

27. Defendants used excessive force, handcuffed, threatened, videotaped and deprived plaintiff of his liberty, freedom, and constitutional rights, despite the fact that Plaintiff had not committed a crime or violation.

28. Defendants detained, arrested, threatened and videotaped plaintiff McCULLOUGH with the express intent of preventing plaintiff from expressing his First, Fourth, and Fourteenth Amendment rights under the United States Constitution and Article I, § 6, 8, 12 rights to free speech and liberty under the New York State Constitution and detained and took plaintiff into custody against his will and without cause.

29. That despite the fact that defendants knew that there was no probable cause to believe that plaintiff committed any crime, one or more than one of the defendants authorized and approved the formal arrest and videotaping of the Plaintiff.

30. That the defendant officers arrested and videotaped plaintiff despite the fact that they knew that the no crimes or violations were committed and that there was no probable cause or justification for such an arrest and/or detention and/or videotaping.

31. That at all times, the officers acted within the scope of their employment of defendants NYPD and City of New York and under the authority of color of state law as police officers.

32. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and New York State Law and the New York State Constitution.

33. Although the defendants knew that detaining, arresting and subsequently videotaping plaintiff when they had no right to do so, in violation of plaintiff's constitutional rights, the defendants processed and videotaped the plaintiff, generating misleading and false accusatory instruments in order to lay charges against plaintiff, even though defendants knew or had reason to know that they were making an illegal arrest.

34. The direct and proximate results of the defendants' acts are that plaintiff suffered severe and permanent injuries of a physical and psychological nature.

SECOND CAUSE OF ACTION

NEGLIGENT HIRING, TRAINING, SUPERVISION, AND RETENTION UNDER NEW YORK STATE LAW

35. Plaintiff repeats, reiterates and realleges all of the allegations set

forth above.

36. Defendant NYPD and City negligently hired, trained, supervised, and retained the defendant officers; defendant NYPD and City was careless and reckless in the hiring, training, supervision, overseeing, and retention of defendant officers.

37. As a result of this negligent hiring, training, supervision, overseeing, and retention, plaintiff has suffered and continues to suffer damages, constitutional violations, as well as other damages.

THIRD CAUSE OF ACTION AGAINST DEFENDANT POLICE DEPARTMENT

MONELL CLAIM PURSUANT TO 42 U.S.C § 1981, 1983, 1985, 1986
AND RESpondeat Superior

38. Plaintiff repeats, reiterates and realleges each and every allegation contained herein as if fully set forth at length herein.

39. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the NYPD which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendant NYPD.

40. Defendant NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those

acts to continue.

41. Defendants detained, arrested, assaulted, battered, and victimized Plaintiff in the absence of any evidence of probable cause or reasonableness to do so, notwithstanding their knowledge that said assault and battery would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

42. Defendant NYPD has grossly failed to train and adequately supervise its police officers in the fundamental law of use of reasonable detention and/or arrest.

43. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a physical and psychological nature.

FOURTH CAUSE OF ACTION AGAINST DEFENDANT POLICE DEPARTMENT

MUNICIPAL AND/OR GOVERNMENTAL LIABILITY

44. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

45. That defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid detention, incarceration, violation of constitutional rights, and permanent psychological injuries to the Plaintiff; and were otherwise reckless,

careless, and negligent.

46. That as a result of the above referenced negligence; Plaintiff was caused to sustain damages and his constitutional rights were violated.

47. That as a result of the above, the Plaintiff demands judgment against the Defendants NYPD in the amount which exceeds the jurisdiction of all lower courts.

FIFTH CAUSE OF ACTION

EXCESSIVE FORCE

48. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

49. Plaintiff did not resist the orders during the above described incident and did not take any actions necessitating the use of excessive physical force by Defendants.

50. As a direct and proximate result of the unlawful excessive force used against Plaintiff by Defendants deprived Plaintiff of his Constitutional rights in violation of the Fourth, Eighth and Fourteenth Amendments of the Constitution and are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

51. Defendant officers used excessive force against Plaintiff with knowledge that Plaintiff did not commit a crime and that the arrest and force used to effectuate the arrest was excessive, unnecessary and without cause or grounds therefore.

52. That as a result of the foregoing, Plaintiff demands judgment against the Defendants in the amount which exceeds the jurisdiction of all lower courts.

SIXTH CAUSE OF ACTION

MALICIOUS PROSECUTION

53. Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

54. That on or about February 4, 2017, one of or more than one of the Defendant officers prepared formal accusatory instruments, with the knowledge that no crime or violation had occurred.

55. That one of or more than one of the Defendant officers prepared and filed charges against Plaintiff with malice and the intent of depriving Plaintiffs of his liberty and right to not have his person seized knowing they had no cause or grounds to do so.

56. That one of or more than one of the Defendant officers prepared and filed these charges against Plaintiff with the intent to deprive Plaintiff of his right to free speech and other constitutional freedoms, with malice as they were aware that Plaintiff had said constitutional rights.

57. That Defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid pain and suffering, defamation, incarceration and permanent

psychological injuries to the plaintiffs; and were otherwise reckless, careless and negligent.

SEVENTH CAUSE OF ACTION

ABUSE OF PROCESS

58. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

59. Without Plaintiff's consent, one of ore more than one of the Defendant officers harmfully and offensively touched Plaintiffs by grabbing him, restraining him, handcuffing him, and unlawfully and unconstitutionally deprived the Plaintiff of his liberty and freedom.

60. Without Plaintiff's consent, one or more of the Defendant officers unlawfully videotaped plaintiff without justification, provocation or cause.

61. One or more of the defendant officers threatened plaintiff without justification, provocation or cause..

62. The Defendants abused their authority and abused their position; Defendants abused and violated the public trust and in particular the trust of Plaintiff. Defendants had no right under the laws of the land to detain, arrest, harass, incarcerate, or prosecute the Plaintiff, yet they chose to regardless. The Defendant officers who did not detain, arrest, harass, incarcerate, or prosecute the Plaintiff, should there be any, are liable to Plaintiff for their

failure to protect and intervene, and a violation of their duty to intervene, safeguard, and protect the Plaintiff.

EIGHTH CAUSE OF ACTION

INFLICTION OF EMOTIONAL DISTRESS

63. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

64. Defendants intentionally and deliberately inflicted emotional distress upon Plaintiff; defendants negligently inflicted emotional distress upon Plaintiff; by maliciously detaining him, grabbing him, restraining him, handcuffing him, falsely arresting him, videotaping, threatening and depriving the Plaintiff of his liberty and freedom, and in abusing Plaintiff.

NINTH CAUSE OF ACTION

NEGLIGENCE

65. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

66. That the aforesaid Defendants, without cause or provocation, negligently, carelessly, and recklessly detained, arrested, videotaped and threatened the Plaintiff despite knowing that no laws, rules, or regulations were violated, without grounds, and without cause.

TENTH CAUSE OF ACTION**PUNITIVE DAMAGES**

67. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

68. The acts, conduct and behavior of the Defendants warrant punitive damages.

As a result of defendants' actions, plaintiff suffered damages.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, economic loss, and other losses and damages, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, costs, and disbursements.

Dated: January 10, 2018
Nassau County, NY

Yours, etc.,
LAW OFFICES OF NORA CONSTANCE MARINO


BY: NORA CONSTANCE MARINO, ESQ.
Attorneys for Plaintiff
175 East Shore Road, Suite 230
Great Neck, NY 11023
516-829-8399
nora@marinojustice.com

ATTORNEY VERIFICATION

STATE OF NEW YORK)

) ss.:

COUNTY OF NASSAU)

NORA CONSTANCE MARINO, an attorney duly licensed to practice law, affirms under penalties of perjury, that I am the attorney of record for ROBERT McCULLOUGH in the within action; that I have read the foregoing **COMPLAINT** and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiffs named herein, is that the plaintiffs resides in a different county then that which your deponent maintains her office.

DATED: January 10, 2018

Nassau County, NY

AFFIRMED



NORA CONSTANCE MARINO

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

ROBERT MCCOULLOUGH,

*Plaintiff(s),**- against -*THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. HASTINGS, AND
P.O. JOHNDOE nos. 1-10,*Defendant(s).*

SUMMONS AND COMPLAINT

Law Offices Of
NORA CONSTANCE MARINO
Attorney for Plaintiff
Office and Post Office Address, Telephone
175 East Shore Road
Great Neck, New York 11023
PHONE: 516.829.8399
FAX: 516.829.4699

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: _____ 20__

*Nora Constance Marino***To :***Service of a copy of the within
is hereby admitted.*

Dated: _____ 20__

Attorney(s) for:

PLEASE TAKE NOTICE :

☐ NOTICE that the within is a (certified) true copy of a

OF ENTRY: duly entered in the office of the clerk of the within named court on _____ 20__

☐ NOTICE OF that an order of which the within is a true copy will be presented for settlement to the